MODULE 2

AI Governance by Human Rights-Centered Design

What does it really mean?

Human Rights-Centred Design means:

When we build AI systems, we should first think about **people**, not technology or profit.

Before asking:

“How powerful is the AI?”

We should ask:

“Is this AI safe and fair for humans?”

Human rights include:

- 🔒 Privacy
- ⚖️ Equality
- 🗣️ Freedom of expression
- 👤 Human dignity

These rights are protected globally under documents like the Universal Declaration of Human Rights.

AI systems must not violate these basic rights.

Why is this important?

AI systems:

- Make decisions
- Analyze personal data
- Influence people's lives

If designed without care, they can:

- Discriminate
- Invade privacy
- Harm innocent people

So governance ensures AI respects human values.

Real-World Example: Face Recognition System

Many companies use AI-based face recognition, like those developed by companies such as Clearview AI.

What can go wrong?

1. **Bias Problem**
    - If the AI is trained mostly on light-skinned faces,
    - It may wrongly identify dark-skinned individuals.
    - This can lead to false police arrests.

This violates the right to equality.

2. **Privacy Problem**
    - If the system collects photos from social media without permission,
    - It violates people's privacy.

This violates the right to privacy.

3. **Dignity Problem**
    - If innocent people are wrongly identified as criminals,
    - It damages their reputation and dignity.

How to Apply Human Rights-Centred Design?

Before releasing the AI system, the company should:

✓ Test it on diverse groups
✓ Take user consent before collecting data
✓ Make the system explainable
✓ Allow humans to review decisions
✓ Provide complaint or correction mechanisms

Deliberation and Oversight in AI Governance

Simple Meaning

Deliberation means discussion before and after using AI.
Oversight means monitoring and supervising AI systems.

In simple words:

AI should not make secret decisions.
Humans must remain in control.
AI decisions must be explainable and reviewable.

AI should assist humans — not replace responsibility.

Why Is This Important?

AI systems today:

- Approve or reject loans
- Select job candidates

- Predict crimes
- Decide insurance prices

If AI makes mistakes and no one checks it:

- People may lose jobs
- People may be denied loans unfairly
- People may suffer without knowing why

That is dangerous.

So we need:

- Transparency
- Accountability
- Human supervision

Real-World Example: Bank Loan Rejection

Imagine a bank uses AI to reject your loan.

Without deliberation & oversight:

- You get rejected.
- No explanation.
- No appeal option.
- No human review.

This is unfair.

With deliberation & oversight:

✔ The bank explains why the AI rejected the loan.
✔ You can question the decision.
✔ A human officer reviews your case.
✔ If AI made a mistake, it is corrected.

This ensures fairness.

What Deliberation Means in Practice

Before using AI:

- Experts discuss risks.
- Lawyers check legal impact.
- Ethics teams check fairness.
- Public opinion may be considered.

It is not only technical — it includes social and ethical discussion.

What Oversight Means in Practice

After deploying AI:

- Continuous monitoring of performance
- Bias testing
- Regular audits
- Human review committees

For example, companies like Google and Microsoft have internal AI ethics review systems.

What Happens Without Oversight?

- Biased hiring systems
- Unfair credit scoring
- Privacy violations
- Wrong criminal predictions

AI can amplify mistakes very fast.

One-Line Understanding

Deliberation = Think carefully before using AI.
Oversight = Watch AI carefully after using it.

Strong Line to Say in Class

"AI can make decisions faster than humans, but responsibility must always remain with humans."

3. End to Ethics Washing

What is Ethics Washing?

Ethics washing means:

A company **claims** it follows AI ethics,
but in reality, it does not seriously implement ethical practices.

It is like:

Showing ethics outside, ignoring ethics inside.

It is similar to "greenwashing" (fake environmental concern), but here it is about AI ethics.

Why Do Companies Do This?

Because:

- Public wants responsible AI

- Governments are watching
- Investors care about reputation

So companies publish:

- “AI Ethics Principles”
- “Responsible AI Guidelines”
- “Fairness Statements”

But they may:

- Not change internal practices
- Ignore bias problems
- Continue harmful data collection

Real Example

A social media platform says:

“We prioritize user safety.”

But:

- It allows misinformation to spread.
- It does not remove harmful content quickly.
- It profits from user engagement — even if content is harmful.

This is ethics washing.

Some large tech companies have faced criticism for this, including companies like Meta Platforms.

Why Is Ethics Washing Dangerous?

- Public trust decreases
- Harm continues secretly
- No real accountability
- Regulation becomes weak

One Strong Line for Class

“Ethics washing is not ethical behavior — it is ethical marketing.”

4. The Incompatible Incentives of Private-Sector AI

What Does This Mean?

“Incentives” means what motivates companies.

Private companies are motivated by:

- Profit
- Market share
- Fast innovation
- Competitive advantage

But ethical AI requires:

- Slower testing
- Careful bias checking
- Strong privacy protection
- Sometimes limiting data use

These two goals can conflict.

Where Conflict Happens

Business Goal	**Ethical Requirement**
Collect more data	Minimize data collection
Release product fast	Test for safety
Increase engagement	Reduce harmful content
Personalize ads	Protect user privacy

Real Example

A company collects user browsing data without proper consent.

Why?

More data → Better AI model → More targeted ads → More profit

But:

This violates privacy rights.

Companies like Google and Amazon have faced debates regarding data use and privacy concerns.

⚠ Why This Is Important

If profit dominates:

- Bias may be ignored
- Safety checks may be skipped

- Privacy may be compromised

So governance is needed to balance profit and ethics.

Strong Line for Class

"Ethical AI sometimes reduces short-term profit but protects long-term trust."

5. Normative Modes: Codes and Standards

What Are Normative Modes?

"Normative" means rules about what is right and wrong.

There are two main tools:

1. Codes

Ethical principles companies promise to follow.

Example:

- Fairness
- Transparency
- Accountability

2. Standards

Technical guidelines for building safe AI systems.

Standards may include:

- Bias testing procedures
- Data protection measures
- Risk assessment frameworks

Organizations like IEEE and ISO create technical standards.

Real Example

AI hiring software must:

- Avoid gender bias
- Avoid caste discrimination
- Ensure equal opportunity
- Provide explainable results

Without standards, companies may act randomly.

Simple Understanding

Codes = "What values we follow."
Standards = "How we technically implement those values."

6. Role of Professional Norms in AI Governance

What Are Professional Norms?

Professional norms are ethical responsibilities of AI engineers.

Just like:

- Doctors follow medical ethics
- Lawyers follow legal ethics

AI engineers must follow AI ethics.

Responsibilities of AI Professionals

They must:

- Avoid harm
- Test for bias
- Protect user data
- Report risks
- Refuse unethical projects

Real Example

If an AI engineer knows:

- The model discriminates against women,
- Or wrongly identifies minorities,

And still releases it for profit —

That is unethical.

A responsible engineer will:

✓ Stop deployment
✓ Report issue to management
✓ Fix bias
✓ Document risks

Professional organizations like ACM publish ethical codes for computing professionals.

Why Professional Norms Matter

Because:

Governments cannot monitor every AI system.

So responsibility must also come from inside the organization.

Ethics must be part of professional culture.